Confidentiality with Children and Teens

A Guide for Counselors · Professional Tip · Brian Campbell, Ph.D.

About this guide. Clinical Companion serves adult clients (18 and older) only. This guide is for counselors who also see children or teens in another setting, and for any counselor who learns about possible child abuse from an adult client. It gathers the parts of confidentiality and mandated reporting that apply to minors.

Disclaimer. Dr. Campbell is not an attorney. This is general information, not a legal opinion, and it is not a complete list of rules. Laws differ from state to state. Become familiar with the statutes of the state where you are licensed, and consult an attorney when you need help interpreting state law.

1. YOUR DUTY AS A MANDATED REPORTER

Counselors are mandated reporters. If you know of or suspect abuse or neglect of a child, you must report it to child protective services (CPS) or law enforcement.

- **Suspicion is enough.** You do not need proof. A reasonable suspicion is enough. Your role is to report, not to investigate or decide whether the abuse happened; CPS does that.
- **Denial doesn't change it.** A parent's or both parents' denial does not remove your duty to report.
- **It applies with adult clients too.** If an adult client tells you a child is being harmed now, you may have to report even though the child is not your client. States differ on whether an adult's account of his or her own past childhood abuse must be reported, especially when the alleged abuser may still have access to children. Check your state's law.
- **Know how and when.** Your state sets the deadline and the way to report (phone, online, or both). Know your state's reporting line before you need it: [State CPS reporting line].
- **Document.** Write down what was said, your reasoning, whom you reported to, when, and any report number. Think carefully before telling a family about a report; don't alert anyone if that could put the child at greater risk. CPS intake workers can often advise you.

2. TYPES OF CHILD ABUSE

- **Sexual abuse.** Any sexual contact with or exploitation of a child must be reported to CPS or law enforcement.
- **Emotional abuse.** Repeated yelling, berating, name-calling, rejecting, or threatening that harms a child's emotional development or sense of self-worth. Many states require reporting suspected emotional abuse, though the threshold for what counts varies.
- **Physical abuse.** Physical injury to a child that isn't accidental. Corporal punishment is legal in certain contexts in the United States, but its legality varies a great deal by state and by setting (home or school), and it is subject to state and local rules. See section 2.1.
- **Neglect.** Failing to provide a child with basic needs such as food, shelter, supervision, or medical care. Neglect is reportable just as abuse is.

2.1 Corporal punishment or abuse?

Corporal punishment does not automatically count as child abuse. Many states allow spanking as long as it doesn't cause injury, leave marks, or involve excessive force. If spanking leaves bruises, welts, or other marks, or is excessive, it may be considered abuse and need to be reported. The legal question is usually whether the discipline was reasonable and caused no injury, and each state defines that differently.

2.2 Prenatal substance exposure

If you learn that a pregnant client is using drugs in a way that could harm the baby, you may need to report it. States differ widely: some treat prenatal substance exposure as child abuse or neglect, some require a report only in certain circumstances, and some don't require a counselor to report at all. Check your state's statutes or get legal advice. Note that this often comes up with adult clients.

3. SEXUAL ACTIVITY, AGE OF CONSENT, AND SEXTING

3.1 Age of consent

The age at which a person can legally consent to sexual activity varies by state, usually between 16 and 18. Sexual activity with a minor below the age of consent may be considered statutory rape or sexual abuse of a minor.

3.2 Close-in-age ("Romeo and Juliet") laws

Some states have laws that provide exemptions or reduced penalties for consensual sexual activity between minors who are close in age (for example, a 17-year-old and a 15-year-old). These laws vary widely. Whether you must report underage sexual activity can depend on both ages, the age difference, and your state's law. Any sign of force, coercion, or exploitation changes the picture.

3.3 Sexting

- **Minors.** In most states, sexting involving minors (sharing sexually explicit images or videos) is a crime, even when consensual. Minors may be charged with creating, possessing, or distributing child pornography if they send or receive explicit images of anyone under 18, including themselves. Some states distinguish consensual sexting between minors from more serious offenses.
- **Reporting.** If you learn of sexting involving minors, you may need to report it, especially when it involves creating, possessing, or distributing explicit images of minors. Whether a report is required depends on your state's law and how serious the situation is.
- **Adults.** Consensual sexting between adults is generally legal, but sharing explicit images without consent is a crime in many states.

4. CONFIDENTIALITY WITH MINORS AND THEIR PARENTS

4.1 Who consents to counseling

Usually a parent or guardian with legal authority consents to a minor's counseling. Some states let minors consent to their own outpatient counseling at a certain age; those ages and rules vary by state.

4.2 Custody

Whether both parents must agree to counseling depends on state law and the custody arrangement. With joint legal custody, both parents typically have the right to make treatment decisions, so both should agree. With sole legal custody, that parent can generally consent alone. Before you begin, ask for a copy of the custody order or parenting plan and keep it in the file.

4.3 What parents can see

In many states, parents or guardians have a right to see their child's records. That right may be limited, especially when the minor consented to treatment on his or her own. HIPAA generally treats a parent as the child's personal representative but defers to state law in several situations. Check your state's rules.

4.4 Setting expectations at the start

- Meet with the parent and the minor together, and agree on what will be shared with parents (for example, attendance, general progress, and any safety concerns) and what will stay private (the details of what the young person says). Put the agreement in writing.
- Explain to parents that a child or teen who trusts that sessions are private is more likely to be open, which helps the counseling work.

4.5 Telling minors about the limits

Explain the limits of confidentiality before a child or teen discloses anything, in words that fit their age. For example: "What you tell me stays between us, except if someone is hurting you, if you might hurt yourself or someone else, or if a judge orders me to share." When you must report something or tell a parent, tell the young person first when it's safe, and involve them in how it's done.

5. WORKED EXAMPLES

These come from Dr. Campbell's "I bet you don't know..." confidentiality questionnaire (question numbers in brackets). Try answering each one before reading the discussion.

Q1. You are treating a 15-year-old girl and learn she has been having sex with her 17-year-old boyfriend. Do you have to report child sexual abuse? [#4]

It depends on your state's age-of-consent law and on the details of the relationship, such as any sign of coercion or abuse. In some states, a close-in-age, consensual relationship may not meet the threshold for statutory rape. If your state classifies it as statutory rape or child sexual abuse, a report to CPS may be required.

Bottom line: Check your state's age-of-consent and close-in-age laws before deciding.

Q2. A young child tells you his mother constantly yells at him, berates him, and calls him harmful names. Is this emotional abuse? Do you have to report it? [#5]

Emotional abuse can include yelling, berating, and harmful name-calling, especially when it is repeated and harms the child's emotional development or sense of self-worth. Many states require reporting suspected emotional abuse.

Bottom line: If you have a reasonable suspicion that a child is being emotionally abused, it typically must be reported to CPS.

Q3. A father regularly spanks his child. Is that child abuse? Does it have to leave marks? [#6]

Corporal punishment is not automatically abuse, and its legality varies by state. Many states allow spanking that doesn't cause injury, leave marks, or involve excessive force. Bruises, welts, or other marks, or excessive force, may make it abuse.

Bottom line: Marks are a strong signal, but the test is whether the discipline was reasonable and caused no injury under your state's law.

Q4. A child tells you her father has been touching her private parts, but both parents deny it. Must you report a suspicion? [#7]

Yes. As a mandated reporter, you must report any suspicion of child sexual abuse to CPS, even when the parents deny it. CPS investigates and decides whether the report is valid.

Bottom line: Report the suspicion; don't investigate it yourself.

Q5. Your client is pregnant and uses marijuana regularly. Do you have to break confidentiality and report prenatal abuse? [#8]

Reporting rules for prenatal substance use vary by state. In some states, prenatal exposure to substances like marijuana may be considered abuse or neglect, especially if it poses a risk to the baby. Weigh your confidentiality duties against any legal reporting requirement.

Bottom line: Know your state's law on prenatal drug exposure; seek legal advice if it's unclear.

Q6. A mother brings her child to counseling, but the father objects. Can you proceed? Do both parents have to agree? [#11]

It depends on state law and the custody arrangement. With joint legal custody, both parents typically have the right to make treatment decisions, so both should agree. With sole legal custody, that parent can generally consent alone.

Bottom line: Get the custody paperwork and check your state's rules before proceeding without the father's consent.

6. RELATED REMINDERS

- **Duty to warn or protect.** If a client threatens a specific person, you may warn that person or notify law enforcement. Whether you must, may, or may not do so varies by state.
- **Elders and vulnerable adults.** You must report known or suspected abuse or neglect of an elder or a vulnerable or dependent adult. Who counts as an elder is defined by state law.
- **Domestic violence.** Counselors generally aren't required to report domestic violence between adults unless a child, elder, or vulnerable adult is being abused or someone is in imminent danger. Some states treat a child's exposure to domestic violence as reportable, and some have their own domestic-violence reporting laws.
- **Past crimes.** Counselors generally aren't required to report past crimes when there is no ongoing danger, though state law may vary.

7. WHEN IN DOUBT

- Talk with your supervisor or a trusted colleague, leaving out identifying details.
- Call your state's CPS intake line and ask; they can tell you whether a situation should be reported.
- Consult an attorney or your professional liability insurer's risk-management service.
- Write down your reasoning and what you did.

Hotlines

- **Childhelp National Child Abuse Hotline:** 1-800-422-4453 (1-800-4-A-CHILD); text or chat at childhelphotline.org. Confidential, 24/7.
- **National Domestic Violence Hotline:** 1-800-799-7233 (SAFE).
- **[State] child abuse reporting line:** [_____]

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